

Present :

Mr. Justice Ashish Ranjan Das.

Civil Revision No. 1269 of 2019

In the matter of:

Md. Moslem Ali

..... Petitioner

-Versus-

Md. Mozaffar Rahman

..... Opposite party.

Mr. Md.Abdullah- Al- Mahmud Choudhury,
Advocate

.....For the petitioner.

Mr. Surojit Bhattacharjee, Advocate

... For the opposite party

Heard on: 24.02.2020 and 01.03.2020

Judgment on: 04.03.2020

Ashish Ranjan Das, J:

Landlord Mohammad Mozaffar Rahman, as plaintiff brought a suit for eviction of the tenant branding him as defaulter under the Small Causes Courts Act,1887, the case being S.C.C. Suit No.01 of 2011 of the First court of Joint District Judge, Dinajpur. The suit was contested and dismissed on 26.09.2018, decree was signed on 01.10.2018. Being aggrieved the tenant defendant preferred this application under section 25 of the Small Causes Courts Act of 1887.

Short facts relevant for the purpose of disposal of the Rule go as under:

The plaintiff opposite party as landlord rented the premises a shop located in the Hat of Dinajpur town at a monthly rate of Tk. 1200/-. Accordingly a tenancy agreement was signed between the

parties on 01.02.2008 giving it a life till 31.01.2011. The tenant was always delinquent in paying rent. However the tenancy agreement as was stipulated it will exist and continue till 31.01.2011.

The tenant took no attempt to extend or renew the agreement nor he paid rent, as he was given a notice under section 106 of the Transfer of Property Act and as the tenant did not comply this case was brought.

While the case of the tenant defendant petitioner is that he was running a shop in the suit premises upon regular payment of rent according to the written agreement between the parties. After the expiry of the period of agreed tenancy the petitioner verbally requested the landlord to accept rent for the month of February and March of 2011 but of no avail. The agreement was however not renewed but the tenant tried to pay rent by post for the month of January to March on 06.04.2011 and on 05.05.2011 but of no avail. Next he started depositing rent with the Rent Controller.

The court below found the case of the plaintiff landlord overwhelmingly proved and decreed the case.

I have heard the learned advocates representing the contesting parties and perused the papers available with the file.

The learned lawyer for the tenant petitioner submits that firstly, there is nothing in the plaint to mean that the tenant defaulted in payment of rent for 3(three) months or more consecutively, secondly the notice under section 106 of the Transfer of Property Act was not properly served and thirdly, the learned court below did not discuss

evidences.

Admitted position is that the petitioner tenant used to be a monthly ejectable tenant and the subject matter was a shop. It is also admitted that written agreement was arrived at between the parties giving it a life from February, 2008 to 31st January, 2011 and it was not further extended or renewed.

In the situation, if all other conditions remain good in favour of the tenant as the learned advocate for the plaintiff opposite party argued that the defendant petitioner is ejectable with the expiry of the period of agreement. In this respect the learned advocate for the petitioner defendant argued that he verbally tried to and told to extend the period of agreement which the landlord did not agree. It would be rather needless to illustrate that it makes no sense since in the agreement it was not stipulated that it could be renewed and extended at the option either of the parties it ought to have been bilateral.

It is rather evident from the written statement of the defendant petitioner that he attempted to pay rent by post for the month of January, February and March, in 06.04.2011 i.e. after expiry of 3 months, he started depositing payment of rent with the rent controller even after. Admittedly it was in the tenancy agreement that in the event of default in payment of rent for 3 consecutively months the tenant would be branded as defaulter. So the trial court rightly found that the tenant was a defaulter.

As regards service of notice it appears that having received the notice the tenant petitioner sent a reply to the landlord, in that case it cannot be said that the notice under section 106 of the Transfer of Property Act was not been duly served.

As the last straw, the learned advocate for the tenant petitioner submits that his oral evidences were not adequately discussed but as has been observed above there was hardly anything to decide the matter relying upon verbal evidences. However it appears that the learned trial court before arriving at a decision discussed relevant evidences.

This being the situation, I find the application meritless and accordingly the Rule is discharged. Order passed by the Small Causes Court, 1st Court of Joint District Judge, Dinajpur in S.C.C. Suit No. 01 of 2011(Peti) dated 26.09.2018 and 01.10.2018 are hereby affirmed.

The order of stay granted earlier by this court is hereby recalled and vacated.

Send down the L.C. Records at once.

However, there is no order as to costs.

The office is directed to communicate the judgment and order to the court below at once.

Justice Ashish Ranjan Das.